

Memo.No.623/Spl.C/A1/2008-4, G.A. (Spl.C) Dept., dt.15.10.2008 regarding instructions on arrests of Accused Officers in trap / disproportionate assets cases.

Subject Heading : Anti Corruption Bureau – Investigation of offences under Prevention of Corruption Act, 1988 – Making arrests of Accused Officers in trap / disproportionate assets cases etc. – Instructions - Issued.

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Ref : 1. Representation of Revenue Earning Departmental Associations Confederation of A.P., Hyderabad, dated nil.

2. G.O.Ms.No.415, G.A. (Cabinet) Dept., dt.05.09.2005.

In the G.O. 2nd cited, Government have constituted a Committee of Group of Ministers to examine the issues raised by the Confederation of Revenue Earning Departmental Associations, A.P., Hyderabad relating to Anti-Corruption Bureau Cases and other disciplinary matters with the following Ministers:-

1. Minister (Finance)	...	Chairman
2. Minister (CT&Excise)	...	Member
3. Minister (Agriculture)	...	Member

2. After detailed deliberations with the representatives of the Associations, the concerned Heads of Departments / Departments on the issues raised by the representatives of the Confederations, the Group of Ministers have submitted a report containing recommendations on the issues for consideration of the Government. The Government, after careful examination of the recommendation pertaining to arrests of Accused Officers in trap / disproportionate assets cases etc., hereby issue the following instructions:-

As per para 169 under Chapter 10 of ACB Manual, Public Servants should be placed under arrest only when it becomes necessary to do so in the interest of investigation or to satisfy the requirements of law or to prevent the accused from absconding or after a decision has been taken to launch a prosecution and necessary sanction for it has been obtained. Investigating Officers should, wherever possible, obtain the concurrence of the Director General, Anti-Corruption Bureau before making such arrest. The Investigating Officers should use utmost care and discretion in deciding to make such arrest so that undue publicity and embarrassment are avoided.

3. Arrest of Government Servants shall be restricted only to successful trap cases. In other matters like indirect trap, disproportionate assets cases, arrest of Government Servants shall not be resorted to as a matter of routine.

4. The Director General, Anti Corruption Bureau shall follow the instructions scrupulously.